

		"[T]he burden is on the party seeking to tax costs to show they were not reasonable or necessary." (612 South LLC v. Laconic Limited Partnership (2010) 184 Cal.App.4th 1270, 1285 [citing <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131].) Plaintiff fails to meet his burden as to these costs. He does not point to any specific cost items within the documents that Defendant submitted that are improperly claimed, or otherwise demonstrate that such were not reasonable or necessary to the litigation. Based on the foregoing, the Court taxes a total of \$13,729.94 in costs and awards Defendant \$239,303.34. Defendant is ordered to give notice of the ruling.
109	2026-01545042 Jeff Lewis Law, APC vs. The Moad Group, Inc.	Application for Right to Attach Order/Writ of Attachment Plaintiff Jeff Lewis Law, APC's application for a writ of attachment against Defendant Ivan Moad in the amount of \$173,400.00 is denied. Plaintiff seeks to attach "all nonexempt attachable property of defendant Ivan Moad subject to attachment under Code of Civil Procedure section 487.010." Code Civ. Proc., § 484.020 requires that the application include: (e) A description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment....Where the defendant is a natural person, the description of the property shall be reasonably adequate to permit the defendant to identify the specific property sought to be attached. Plaintiff's description of the property is incredibly broad, contrary to § 484.020. (See <i>Bank of America v. Salinas Nissan, Inc.</i> (1989) 207 Cal.App.3d 260, 267–268.) Therefore, because Plaintiff failed to include an adequate description of the property sought to be attached pursuant to Code Civ. Proc., § 484.020, the application is denied. Defendant Ivan Moad shall give notice.
110	2025-01492685 Molina vs. Kia America, Inc	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint Defendant Kia America, Inc.'s demurrer to the fifth cause of action for fraudulent inducement in Plaintiffs Melinda and Michael Molina's first amended complaint ("FAC") is sustained without leave to amend. The motion to strike is granted without leave to amend as to the prayer for punitive damages in the FAC; the motion is otherwise moot. Facts Defendant Kia demurs to the fraudulent inducement claim contained within Plaintiffs' first amended complaint. [ROA #61.] Defendant expressly seeks to have the demurrer sustained without leave to amend, arguing that Plaintiffs have shown they cannot cure the defects in their allegations. [Demurrer MPA at 7.] Plaintiffs have filed a statement that they do not oppose the demurrer. [ROA #69.]

		Defendant has moved to strike both the fraudulent inducement claim and the prayer for punitive damages. [ROA #65.] Plaintiffs have not filed any response or opposition. Demurrer Given Plaintiffs’ express non-opposition, the demurrer to the fifth cause of action in Plaintiffs’ FAC is sustained without leave to amend. Plaintiffs have made no showing that they can cure any defects in the complaint. “If there is a reasonable possibility that the defect in a complaint can be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend. . . . The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended.” <i>Hendy v. Losse</i> (1991) 54 Cal.3d 723, 742 (citations omitted). Motion to Strike A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. <i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. <i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6. Fraudulent Inducement Cause of Action Given the demurrer ruling, the motion to strike is moot as to the fraudulent inducement cause of action. Prayer for Punitive Damages The motion is granted as to the prayer for punitive damages. At the pleading stage, to support a claim for punitive damages the complaint must allege facts supporting circumstances of oppression, fraud, or malice. <i>See Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166. In the absence of a viable fraud claim as a result of the demurrer ruling, Plaintiffs have not alleged a basis for punitive damages. Defendant is ordered to give notice.
111	2025-01467987 Yang vs. Ha	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Thuy Ha and Open Plan Construction Inc.’s demurrer to Plaintiffs Scott Yang and Nina Tran’s second amended complaint is overruled. <u>2nd COA for Breach of Contract</u> “A cause of action for breach of contract requires [1] pleading of a contract, [2] plaintiff’s performance or excuse for failure to perform, [3] defendant’s breach, and [4] damage to plaintiff resulting therefrom.” (<i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 655.) A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. (<i>Holcomb v. Wells Fargo Bank, NA</i> (2007) 155 Cal.App.4th 490, 501.)